

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Senior Judge John L. Kane**

Date: March 17, 2009

Deputy Clerk: Bernique Abiakam
Court Reporter: Kara Spitler

Civil Action No.: 00-cv-01077-JLK-KLM

UNITED STATES OF AMERICA, ex rel,
ALI BAHRANI,

George W. Parker, Jr.
Brian Ulmer
Bob Krause

Plaintiff/Relator,

v.

CONAGRA, INC.,
CONAGRA HIDE DIVISION,
CONAGRA BEEF COMPANIES, and
MONFORT, INC.,

Darrell G. Waas
Patricia Campbell

Defendants.

COURTROOM MINUTES

Jury Trial Day 6

8:32 a.m. Court in session.

Counsel and parties present.

Discussion regarding proposed jury instruction.

Tendered instruction is REJECTED.

Further discussion regarding corrections to jury instructions.

Discussion regarding witness testimony.

The Court will advise the jury regarding relevant testimony.

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8:50 a.m. Court in recess.

9:05 a.m. Court in session.

9:06 a.m. Jury present.

The Court instructs the jury regarding witness testimony, and the selection process of “court appointed” expert witness. The Court also advises the jury that the expert’s testimony should be considered the same as any other witness in this case.

9:10 a.m. Defendants’ witness, John Harvey Gray, called and sworn.
Direct examination begins by Mr. Waas.

9:28 a.m. Cross examination begins by Mr. Krause.

10:01 a.m. Re-direct examination by Mr. Waas.

10:06 a.m. Re-cross examination by Mr. Krause.

Defendants’ rest.

10:07 a.m. Jury excused.

Witness thanked by the Court and excused.

Discussion regarding verdict form.

10:09 a.m. Rule 50 Motion argument by Ms. Campbell.

10:10 a.m. ORDERED: Defendants’ Oral Motion as a Matter of Law Under Rule 50 is DENIED.

10:15 a.m. Court in recess.

11:12 a.m. Court in session.

Discussion regarding changes to the proposed special verdict form.

Discussion regarding an additional instruction.

11:26 a.m. Court in recess.

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1:06 p.m. Court in session.

Discussion regarding revision to Instruction No. 2.2.

1:14 p.m. Jury present.

The Court instructs the jury as to the remaining trial schedule.

1:17 p.m. Closing argument by Mr. Ulmer.

2:09 p.m. Closing argument by Ms. Campbell.

3:04 p.m. Rebuttal argument by Mr. Ulmer.

3:30 p.m. Court in recess.

3:52 p.m. Court in session.

3:53 p.m. Jury present.

The Court instructs the Jury.

Question from Juror No. 4.

CSO sworn.

4:50 p.m. Jury excused to begin deliberations.

Discussion regarding question by Juror No. 4, specified jury instruction and evidence.

4:56 p.m. Court in recess.

Trial continued.

Time in court - 5 hours, 10 minutes.

(Jury recessed at 4:52 p.m. and will resume deliberations tomorrow morning at 9:00 a.m.)